

24STCV16441B 24STCV16441B

County: los-angeles

Division: Civil Law and Motion

Department: 415

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Case Number: 24STCV16441B Hearing Date: August 17, 2026 Dept: 415

TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

August 17, 2026

CASE NUMBER

24STCV16441B

MOTION

Motion to Tax Costs

MOVING PARTY

Defendant General Motors LLC

OPPOSING PARTY

Plaintiff Elmer Joel Alvarado Rojas

MOTION

Plaintiff Elmer Joel Alvarado Rojas ("Plaintiff") settled his claims against Defendant General Motors LLC ("Defendant"). Defendant moves to tax the costs on the memorandum of costs Plaintiff served. Plaintiff opposes the motion.

ANALYSIS

As Plaintiff points out, the Court must consider his entitlement to costs under Civil Code section 1794, the Song-Beverly Consumer Warranty Act's cost-shifting provision. That statute provides a prevailing plaintiff may recover costs and expenses, including attorney fees. (Civ. Code, § 1794, subd. (d).) It further states, as the prevailing party, Plaintiff is entitled to "the aggregate amount of costs and expenses . . . determined by the court to have been reasonably incurred . . . in connection with the commencement and prosecution of" this case. (Ibid.) As such, Plaintiff is entitled to recover costs and expenses which are not otherwise recoverable costs, if the Court concludes the amounts "were reasonably incurred." (Jensen v. BMW of North America, Inc. (1995) 35 Cal.App.4th 112, 138, overruled on other grounds in Rodriguez v. FCA US LLC (2024) 17 Cal.5th 189.)

Defendant moves to strike "filing fees related to [Plaintiff's] unfiled attorneys fee motion." (Motion to Strike or Tax Memorandum of Costs, p. 4.) Plaintiff has now filed a motion for attorney fees. As such, this argument is moot. Defendant also argues Plaintiff's notice of acceptance of Defendant's offer to compromise and notice of entry of judgment were "incurred unnecessarily" and are, therefore, not compensable. (Perko's Enterprises, Inc. v. RRNS Enterprises (1992) 4 Cal.App.4th 238, 245.) The Court cannot conclude these filings were unnecessary, especially given such filings are commonplace and reasonable. Thus, Plaintiff may recover these fees.

Defendant moves to strike \$1,287.75 in deposition costs for the deposition of Luis Sandoval ("Sandoval"). Defendant designated Sandoval as its person most qualified to testify on specified matters. This deposition was plainly reasonable for Plaintiff's prosecution of this case. Therefore, Plaintiff may recover these costs.

Defendant also moves to strike \$455.67 in costs for printing, postage, and service. The Court concludes Plaintiff's costs for photocopying and postage are overhead of Plaintiff's counsel's business and not recoverable as costs. The Court, therefore, grants this part of the motion by striking \$49.25 in costs representing photocopying from Plaintiff's memorandum of costs.

The Court accepts Plaintiff's assertion he has incurred additional expenses of \$86.57 related to the filing of an attorney fees motion and will incur a total of \$49.24 in fees for filing a reply brief in support of that motion and a notice regarding dismissal of this action. Therefore, the Court concludes the reasonable expenses and costs Plaintiff will incur amounts to \$3,572.46 (\$3,485.90 plus \$135.81 (in additional costs) minus \$49.25 (deduction for photocopying costs)).

CONCLUSION AND ORDER

Defendant is to pay Plaintiff \$3,572.46 in costs incurred, through Plaintiff's Counsel, within 30 days of notice of the Court's order.

Defendant is to give notice of the Court's ruling and to file proof of service of same.